



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON MAY 15, 2023 AT THE BARANGAY HALL OF SAN FERNANDO, PRIETO DIAZ, SORSOGON

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Florence D. Detecio, RN	S. B. Member
Hon. Jo Madel D. Domalaon	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Ronniel D. Diolata	SKMF Pres. /S. B. Member

ABSENT:

None

ORDINANCE NO. 2023-09

Introduced by Hon. Vice Mayor Avon Domalaon & Hon. Luis Lee Espena, Jr.

AN ORDINANCE CREATING CERTAIN PLANTILLA POSITIONS IN THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON AND APPROPRIATING FUNDS THEREFOR

Be it ordained by the Sangguniang Bayan in session assembled:

Section 1. RATIONALE

The Office of the Municipal Vice Mayor, to date, has no permanent employee of its own. It is in need of a permanent employee who be in charge of the service motorcycles assigned in the Sangguniang Bayan, who is also trained and trusted in terms of transmitting letters, resolutions and ordinances to the different barangays in the municipality, and do the errands of the Sangguniang Bayan in the barangays.

On the other hand, the Office of the Secretary to the Sangguniang Bayan is manned only by the SB Secretary herself, and 2 Administrative Aides, under permanent status. In view of the bulk of workload in the said office, there is a need for an additional employee to assist the Secretariat accomplish its work faster and more efficiently. The number of committee hearings and public hearings in a week, aside from the administrative work indeed requires another helping hand.

Similarly, the Municipal Health Office needs another Midwife to assist them in their daily health services to the barangays.

Section 2. LEGAL BASIS

Section 447 (a) (1) (viii) of the Local Government Code of 1991 provides that, the Sangguniang Bayan, shall, among others, "*Determine the positions and the salaries, wages, allowances and other emoluments and benefits of officials and employees paid wholly or mainly from municipal funds . . .*"

Section 3. CREATION OF POSITIONS

The following positions are hereby created:

POSITION TITLE	OFFICE	SALARY GRADE
Local Legislative Staff Assistant III	Office of the Secretary to the Sangguniang Bayan	SG 10
Administrative Aide III (Driver I)	Office of Municipal Vice Mayor	SG 2
Midwife I	Office of the Municipal Health Officer	SG 9

Section 4. QUALIFICATION REQUIREMENTS

The minimum qualification requirements for the newly-created positions prescribed under the Qualification Standard Manual of the Civil Service Commission, and as proposed by the authors are as follows:

EDUCATION	EXPERIENCE	TRAINING	ELIGIBILITY
1. Local Legislative Staff Assistant I Completion of 2 years in college	5 years experience involving legislative works	8 hours training	Career Service Sub Professional / 1 st Level Eligibility
2. Administrative Aide III (Driver I)	5 years related experience	None required	Professional Driver's license
3. Midwife I Completion of Midwifery Course	5 years related experience	8 hours training	RA 1080

In addition, the applicant should be a *bonafide* resident of the municipality of Prieto Diaz and of good moral character.

Section 5. SELECTION AND APPOINTMENT

Selection and appointment shall be in accordance with the Local Government Code of 1991 and the Civil Service laws, rules and regulations.

Section 6. APPROPRIATION

The newly-created positions are made part and integral element of the Plantilla of the Municipal Government of Prieto Diaz and shall be automatically funded from the Personal services component of the budget effective FY 2024 Annual Budget.

SECTION 7. SEPARABILITY CLAUSE

Any reasons or provision of this ordinance is declared invalid, other parts or provisions thereof which are not affected shall continue to be in force and effect.

SECTION 8. REPEALING CLAUSE

Any ordinance or resolution or part thereof which are inconsistent or in conflict with their ordinance is hereby repealed.

SECTION 9. EFFECTIVITY

This ordinance shall take effect after the completion of the required posting period in the municipality as per Local Government Code of 1991.

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio D. Escudero II, MDMG; copy furnished Hon. Romeo D. Domasian, Municipal Mayor; Mr. Christian Lloyd Golena, MHRMO; and all concerned for their information and appropriate action and all concerned for their information and appropriation action.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA - YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/ Presiding Officer

APPROVED:

Hon. ROMEO D. DOMASIAN, PhD
Municipal Mayor
Date approved: _____



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building, Gov. Augusto G. Ortiz Drive corner, Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

July 25, 2023

TRANSMITTAL NO. **497-2023**

AUG 07 2023

TRANSMITTAL FOR: **THE HONORABLE SANGGUNIANG BAYAN**

Thru: **Ms. BERNADETTE E. YAO**

Secretary to the Sangguniang Bayan

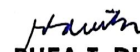
LGU – Prieto Diaz, Sorsogon

Respectfully transmitting the herein resolution approved by the 11th Provincial Board on
July 10, 2023 (54th Regular Session) for your information and reference.

RESOLUTION NO. 418-2023

RESOLUTION DECLARING INVALID PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2023-09,
ENTITLED: "AN ORDINANCE CREATING CERTAIN PLANTILLA POSITIONS IN THE LOCAL
GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON AND APPROPRIATING FUNDS THEREFOR."

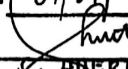
Prepared by:


RHEA T. DIESTA
Local Legislative Staff Officer III

Noted:


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan

SBIC - 07279073 - 293

OFFICE OF THE SANGGUNIANG BAYAN	
PRIETO DIAZ, SORSOGON 4711	
RECEIVED	
DATE: 07/27/23	TIME: 9:20 AM
BY: 	REF. NO. 293



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700

AUG 07 2023

EXCERPT FROM THE JOURNAL OF THE 54th REGULAR SESSION OF THE 11TH PROVINCIAL BOARD ON JULY 10, 2023 AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. John Ryan C. Dioneda
Hon. Maria "Nini" O. Ravanilla
Hon. Ralph Walter R. Lubiano
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Juan G. Guysayko
Hon. Benito L. Doma
Hon. Roland R. Añonuevo
Hon. Eduardo E. Ong Jr.*

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Lorenz S. Abenion – Provincial President, Sangguniang Kabataan Federation

*On Official Travel

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RESOLUTION NO. 418-2023

RESOLUTION DECLARING INVALID PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2023-09, ENTITLED: "AN ORDINANCE CREATING CERTAIN PLANTILLA POSITIONS IN THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON AND APPROPRIATING FUNDS THEREFOR."

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Ordinance No. 2023-09 for review and appropriate action;

WHEREAS, Section 5 of CSC Memorandum Circular No. 12, Series of 2022 (CSC MC 12-2022) states that "*LGUs shall create mandatory positions. It may create optional positions, provided that all mandatory positions shall have been created, and in accordance with the limitations provided under the law and these Guidelines. It is understood that the creation of positions shall have the corresponding budget, approved by the sanggunian, to be considered valid*";

WHEREAS, every LGU may only create certain positions under the conditions set forth in CSC MC 12-2022. Therefore, appointments not in accordance with the provisions of said circular shall likewise be disapproved;

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WHEREAS, the list of newly created positions in Prieto Diaz Ordinance No. 2023-09 are not included in the list of positions enumerated in CSC MC 12-2022. Consequently, the ordinance is deemed *ultra vires* being not in accordance with the requirements set forth in the same circular;

NOW, THEREFORE, on motion of Hon. Benito L. Doma, jointly seconded by Hon. Edmundo A. Atutubo and Hon. Maria "Nini" O. Ravanilla, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE INVALID PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2023-09, ENTITLED: "AN ORDINANCE CREATING CERTAIN PLANTILLA POSITIONS IN THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON AND APPROPRIATING FUNDS THEREFOR."**

LET COPIES of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz for their information and guidance.

APPROVED.

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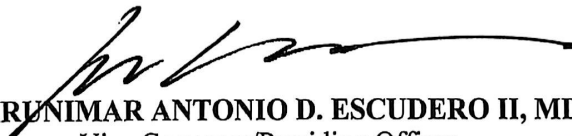
I HEREBY CERTIFY to the correctness of the foregoing.



RODOLFO C. DEALCA, JR.

Secretary to the Sangguniang Panlalawigan

ATTESTED:



HON. KRUNIMAR ANTONIO D. ESCUDERO II, MDMG
Vice Governor/Presiding Officer